



NSUTMUN
DIPLOMACY DIVERSITY DISSENT

United Nations Commission on the Status of Women

Strengthening access to justice for women, by promoting equitable legal systems and addressing discriminatory laws, policies and structural barriers.

Back- ground Guide

LETTER FROM THE EXECUTIVE BOARD

"Leadership is lifting a person's vision to high sights, the raising of a person's performance to a higher standard, the building of a personality beyond its normal limitations."

—Peter Drucker

Greetings Delegates of the committee,

It is a great honour for us to serve as the Executive Board of United Nations Women and we are really excited and looking forward to meeting you all at the conference. We are thrilled to have you join us for this exciting and academic discussion.

In the committee, you'll be young leaders who will be talking about the agenda at hand: Discussion on *"Strengthening access to justice for women, by promoting equitable legal systems and addressing discriminatory laws, policies and structural barriers"* Always remember that change begins when young minds decide to take action, let this be the motivation for everyone and anyone who walks into the conference.

We believe that through collaboration, diplomacy, and innovative solutions, we can make a meaningful impact on these challenges. Over the course of the conference, you will have the opportunity to engage in spirited debates, negotiate resolutions, and forge lasting friendships with delegates from diverse backgrounds. We encourage you to approach each session with an open mind, a spirit of cooperation, and a determination to make a positive difference.

This background guide only provides a rough idea of the agenda of the committee and will help you get a basic idea regarding the topic which the committee will be deliberating upon but remember this study guide is not exhaustive and we are forward to see your research for the debate in the committee.

As you embark on this MUN journey, remember that you are not only representing your assigned country or committee but also contributing to the larger goal of promoting peace, understanding, and diplomacy.

We'll also love to see your creativity and research in debate as well as the end document. You will be marked upon the criterion which includes your research, Debate, and diplomacy. We thank all of you for your commitment and wish you all a stimulating conference. The anticipation of a memorable session.

Regards,

Akanksha Vats (Chairperson)
Anubhav Sahu (Vice Chairperson)

ABOUT THE COMMITTEE

The Commission on the Status of Women (CSW) is the principal global intergovernmental body exclusively dedicated to the promotion of gender equality and the empowerment of women. A functional commission of the Economic and Social Council (ECOSOC), it was established by ECOSOC resolution 11(II) of 21 June 1946.

The CSW is instrumental in promoting women's rights, documenting the reality of women's lives throughout the world, and shaping global standards on gender equality and the empowerment of women.

In 1996, ECOSOC in resolution 1996/6 expanded the Commission's mandate and decided that it should take a leading role in monitoring and reviewing progress and problems in the implementation of the Beijing Declaration and Platform for Action, and in mainstreaming a gender perspective in UN activities.

During the Commission's annual two-week session, representatives of UN Member States, civil society organizations and UN entities gather at UN headquarters in New York. They discuss progress and gaps in the implementation of the 1995 Beijing Declaration and Platform for Action, the key global policy document on gender equality, and the 23rd special session of the General Assembly held in 2000 (Beijing+5), as well as emerging issues that affect gender equality and the empowerment of women. Member States agree on further actions to accelerate progress and promote women's enjoyment of their rights in political, economic, and social fields. The outcomes and recommendations of each session are forwarded to ECOSOC for follow-up.

UN Women supports all aspects of the Commission's work. We also facilitate the participation of civil society representatives.

Methods of work

The Commission adopts multi-year programmes of work to appraise progress and make further recommendations to accelerate the implementation of the Platform for Action.

These recommendations take the form of negotiated agreed conclusions on a priority theme. The Commission also contributes to the follow-up to the 2030 Agenda for Sustainable Development so as to accelerate the realization of gender equality and the empowerment of women.

Under its current methods of work, established by ECOSOC resolution 2022/4, at each session the Commission:

- Convenes a ministerial segment to reaffirm and strengthen political commitment to the realization of gender equality and the empowerment of women and girls as well as their human rights, and to ensure high-level engagement and the visibility of the deliberations of the Commission, including through ministerial round tables or other high-level interactive dialogues to exchange experiences, lessons learned, and good practices;
- Engages in general discussion on the status of gender equality, identifying goals attained, achievements made, and efforts under way to close gaps and meet challenges;
- Convenes interactive expert panel discussions and other interactive dialogues on steps and initiatives to accelerate implementation and measures to build capacities for mainstreaming gender equality across policies and programmes;
- Considers one priority theme, based on the Beijing Declaration and Platform for Action and the outcome of the 23rd special session of the General Assembly and linkages to the 2030 Agenda for Sustainable Development;
- Evaluates progress in implementing agreed conclusions from previous sessions as a review theme;
- Discusses emerging issues, trends, focus areas, and new approaches to questions affecting the situation of women, including equality between women and men, that require timely consideration;
- Considers in closed meeting the report of its Working Group on Communications;
- Agrees on further actions for the promotion of gender equality and the empowerment of women by adopting agreed conclusions and resolutions;
- Contributes gender perspectives to the work of other intergovernmental bodies and processes;
- Reports on the aspects relating to gender equality and the empowerment of women of the agreed main theme of the Economic and Social Council, in order to contribute to its work; and
- Celebrates International Women's Day on 8 March, when it falls within its session.

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II. INTRODUCTION TO THE AGENDA

“Access to justice for women, by promoting equitable legal systems and addressing discriminatory laws, policies and structural barriers.”

Women’s access to justice

The concept of justice is rooted in all national cultures and traditions and is closely linked to fairness, equity and impartiality. The United Nations views justice as “an ideal of accountability and fairness in the protection and vindication of rights and the prevention and punishment of wrongs.” More recently, the High-Level Meeting of the United Nations General Assembly on Peacebuilding and Sustaining Peace has stressed that the rule of law and access to justice are key to unlocking the potential of sustaining peace.

Access to justice is both a basic human right and a means of implementation of other human rights. The United Nations Development Programme (UNDP) defines access to justice as “the ability of people to seek and obtain a remedy through formal or informal institutions of justice, and in conformity with human rights standards”

Women’s justice needs and experiences may, however, be different from men due to higher levels of poverty and power dynamics in the family and community. Building on the UNDP’s definition of access to justice, the mapping report on non-conflict settings defines women’s access to justice as: “Access by women, in particular, from poor and disadvantaged groups, to fair, effective, affordable and accountable mechanisms, for the protection of rights, control of abuse of power, and resolution of conflicts. This includes the ability of women to seek and obtain a fair and just remedy through formal and informal justice systems and the ability to influence and participate in law-making processes and institutions.”

With variations by country, a wide range of formal and informal institutions play a significant role in justice delivery. Formal justice and security sector institutions¹⁷ encompass the broad range of State institutions which administer justice across the justice chain. They may include ministries of justice, ministries of defence and ministries of interior/homeland security (as applicable), as well as the respective departments and agencies of these ministries (e.g., law reform commissions, police, courts, prosecution services, immigration and military). Some of these institutions may be specialized. For example, courts may be created to deal specifically with issues such as family, domestic violence, land and labour. The State may also establish quasi-judicial bodies such as National Human Rights Institutions (NHRIs) and Equal Opportunities Commissions to address legal rights, duties and privileges.

Justice reforms are needed throughout the world to redress the impact of unequal power relations between men and women. Access to justice is an important dimension of conflict prevention and sustaining peace. CEDAW General Recommendation No. 30 on Women in Conflict Prevention, Conflict and Post-Conflict Situations (CEDAW GR 30) and CEDAW General Recommendation No. 33 on Women's Access to Justice (CEDAW GR 33) signal a paradigm shift in justice delivery for women. They emphasize that justice delivery must traverse development, conflict, post-conflict and other forms of crisis contexts, because women and girls are at risk of violence and other forms of violations in all these settings.

The 2030 Agenda for Sustainable Development prioritizes those who are furthest behind, and in many cases, this means women. The diversity of women's personal characteristics and circumstances can lead to complex forms of exclusion, aggravating systemic and structural discrimination, prejudice and stereotyping. Justice programming must therefore strive to be inclusive, which means that no woman can be denied justice due to personal and situational circumstances. Inclusive justice signals a system of justice that is pro-poor and responsive to the rights and needs of all categories of women, particularly those who are marginalized and excluded.

Overall, women's access to justice:

- Is a means of implementation of women's rights: Impartial justice institutions signal that women's rights are human rights and, in this context, discrimination against women is eliminated and laws and standards are upheld and enforced.
- Is central to sustaining peace and the rule of law: Addressing the myriad of obstacles to women's access to justice before, during or in the aftermath of conflict is essential to eliminating gender-based violence and discrimination.
- Contributes to the fight against impunity towards women: The availability of justice signals that women's rights are human rights and that perpetrators of violations of such rights must be held to account.
- Combats poverty and exclusion: Accessing justice is a critical pathway to combating poverty, through the protection of economic assets such as land and housing. Strengthening women's property rights also supports income generation, agricultural productivity and food security.
- Protects from economic exploitation and abuse: Justice provides legal recourse against unequal pay, sexual harassment and physical harm. By accessing justice, women can address unfair labor practices and exploitation.

Overarching commitments underpinning women's access to justice

A range of standards and norms provide the relevant foundations for designing and implementing women's access to justice programmes. . They constitute a framework of agreed commitments, which Justice needs of women who face multiple and intersecting forms of discrimination demonstrates the essence of bridging the peace and security, human rights and development agendas. By doing so, programming is better able to capture the continuum of violations of women's rights, including in contexts where transitional justice processes have been concluded.

Women's access to justice is underpinned by important standards and norms



2030 Agenda for Sustainable Development	This framework contains a set of 17 interconnected Goals, 169 Targets and 232 Indicators for eradicating poverty, promoting human rights, gender equality, good governance, effective participation and the rule of law. The Pathfinders Roadmap for Peaceful, Just and Inclusive Societies, finds that in all, 36 Targets across the Agenda directly measure an aspect of peace, inclusion or access to justice. Of these, one-third are found in SDG 16. SDG 5 is also particularly relevant because it encompasses a range of commitments such as reforming discriminatory laws, tackling violence against women, addressing women's property rights and ensuring women's effective and meaningful participation in decision-making.
Peacebuilding and Statebuilding Goals	Developed by g7+ countries with bilateral and multilateral donor partners (collectively known as the International Dialogue on Peacebuilding and Statebuilding)¹⁹ the PSGs respond to the specific needs of fragile States in conflict or in its aftermath. This set the stage for A New Deal for Engagement in Fragile States in 2011, which is established on the following five PSGs:

	• Legitimate politics: Foster inclusive political settlements and conflict resolution • Security: Establish and strengthen people's security • Justice: Address injustices and increase people's access to justice • Economic foundations: Generate employment and improve livelihoods • Revenues and services: Manage revenue and build capacity for accountable and fair service delivery.
UNSCRs on Women, Peace and Security	All eight UNSCRs on WPS demonstrate important linkages between access to justice, international peace and security and state accountability. The four dimensions of the WPS agenda, namely, (1) prevention, (2) participation, (3) protection and (4) peacebuilding and recovery, are the reference points for dealing with the many challenges that women face in crises and fragile contexts. Given the volatility and instability of political conditions in fragile settings, understanding the situation of women at risk and undertaking political analyses are central to planning and programming for women's access to justice. Significantly, the Report of the Secretary-General on Women's Participation in Peacebuilding (A/65/354-S/2010/466), Tracking Progress: 7-Point Action Plan (7-PAP), intends to accelerate implementation of UNSCR 1325 by committing the United

	Nations system to specific targets. It highlights the need for increased access to justice for women and girls whose rights are violated, including the promotion of women's participation in post-conflict justice mechanisms and law enforcement.
Sustaining Peace	The Sustaining Peace agenda has been shaped by a number of groundbreaking assessments and resolutions. These include the assessment of the High-Level Independent Panel on Peace Operations, Uniting Our Strengths for Peace – Politics, Partnership and People; the Report of the Advisory Group of Experts for the 2015 Review of the United Nations Peacebuilding Architecture, The Challenge of Sustaining Peace; UNSCR 2282; and United Nations General Assembly and ECOSOC, Report of the Secretary-General, Repositioning the United Nations Development System to Deliver on the 2030 Agenda: Ensuring a Better Future for All. These frameworks and initiatives emphasize prevention and greater cooperation across the peace and security, human rights and development “pillars” of the United Nations. In this context, UNSCR 2282 recognizes that “an integrated and coherent approach among relevant political, security and developmental actors, within and outside of the United Nations system, consistent with their respective mandates, and the Charter of the United Nations, is critical to sustaining peace, and essential for improving respect

	for human rights, advancing gender equality, empowering women and youth, strengthening the rule of law, eradicating poverty, building institutions, and advancing economic development in conflict-affected countries”.
The Convention on the Elimination of All Forms of Discrimination against Women	United Nations General Assembly Resolution 34/180, Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) is the global charter of women’s rights and therefore, the blueprint for women’s access to justice programming. Ratified by 189 countries, the Convention provides the basis for realizing equality between women and men by ensuring women’s equal access and equal opportunities in all spheres of economic, social, cultural, political and civil life.²² States parties agree to take all appropriate measures, including legislation and temporary special measures, so that women can enjoy all their human rights and fundamental freedoms. States which have ratified the Convention are legally bound to put its provisions into practice. They are also committed to submit national reports, at least every four years, on measures they have taken to comply with their treaty obligations to the Convention’s monitoring body, the CEDAW Committee. United Nations General Assembly Resolution 54/4, Optional Protocol to the Convention on the Elimination of All Forms of Discrimination against Women also serves as an important access to justice recourse.

United Nations standards and norms in crime prevention and criminal justice

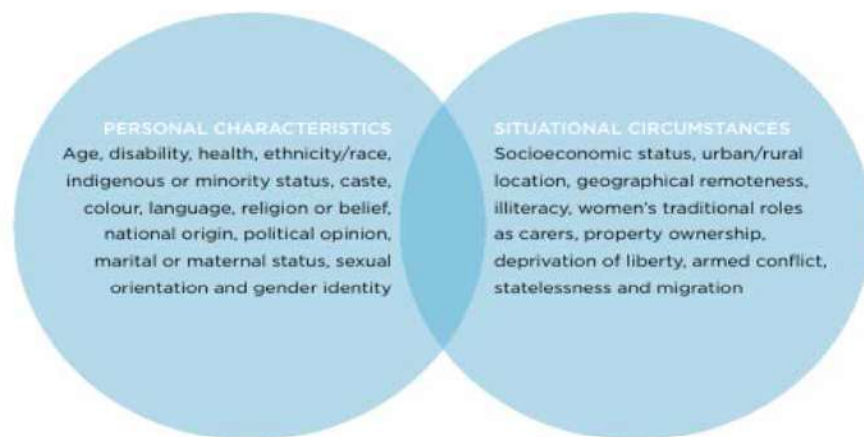
These are instruments which have been adopted by the General Assembly or other intergovernmental bodies based on the consensus of all Member States of the United Nations. They contain detailed guidance for crime prevention and criminal justice practitioners and systems, therefore serving as a roadmap for implementing international obligations on human rights in the administration of justice and related political commitments concerning peace, justice, the rule of law and sustainable development. Examples of standards and norms relating specifically to women's access to justice include:

- United Nations General Assembly Resolution 67/187, United Nations Principles and Guidelines on Access to Legal Aid in Criminal Justice Systems
- United Nations General Assembly Resolution 65/229, United Nations Rules for the Treatment of Women Prisoners and Non-custodial Measures for Women Offenders (the Bangkok Rules)
- United Nations General Assembly Resolution 65/228, Updated Model Strategies and Practical Measures on the Elimination of Violence against Women in the Field of Crime Prevention and Criminal Justice²⁴
- United Nations ECOSOC Resolution 2002/12, Basic Principles on the Use of Restorative Justice Programmes in Criminal Matters

General recommendations of the CEDAW Committee	Several general recommendations of the CEDAW Committee and other treaty bodies are central to justice programming because they assist in identifying the underlying causes of gender discrimination in justice delivery, as well as actions that are needed to address them. In response to persistent violations of women's human rights in and outside of conflict, the CEDAW Committee issued CEDAW GR 30 in 2013. Used as a tool for operationalizing the WPS agenda, CEDAW GR 30 emphasizes the need to establish effective linkages between transitional and post-conflict justice mechanisms to ensure that vulnerabilities associated with SGBV are adequately addressed in all phases of development and fragility. In 2015, the CEDAW Committee issued CEDAW GR 33 to guide States parties and other stakeholders on the most effective ways to protect women against violations of their rights across diverse legal systems.
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Women are not a homogeneous group. Several personal characteristics and situational circumstances often combine to deepen their exclusion and marginalisation. When one or more of the factors highlighted in the figure underneath the paragraph—as is often the case—the risk of social exclusion and marginalisation is not only perpetuated, but also acquires an enduring quality that can span over a lifetime and across generations

The CEDAW Committee finds that such women are at risk of being deprived of effective remedies for violations of their rights. Women who are marginalized socially, economically, culturally and politically are less likely to report such violations to authorities for fear that they will be humiliated, stigmatized, arrested, deported, tortured or have other forms of violence inflicted upon them. When they do lodge complaints, law enforcement officials often fail to act with due diligence to investigate, prosecute and punish perpetrators and provide remedies.



Intersectionality is a basic concept for understanding the scope of the general obligations of States parties contained in Article 2. The discrimination of women based on sex and gender is inextricably linked with other factors that affect women, such as race, ethnicity, religion or belief, health, status, age, class, caste and sexual orientation and gender identity. Discrimination on the basis of sex or gender may affect women belonging to such groups to a different degree or in different ways to men. States parties must legally recognize such intersecting forms of discrimination and their compounded negative impact on the women concerned and prohibit them.

Vulnerabilities and rights violations that specific groups of women and girls face



Girls and adolescents

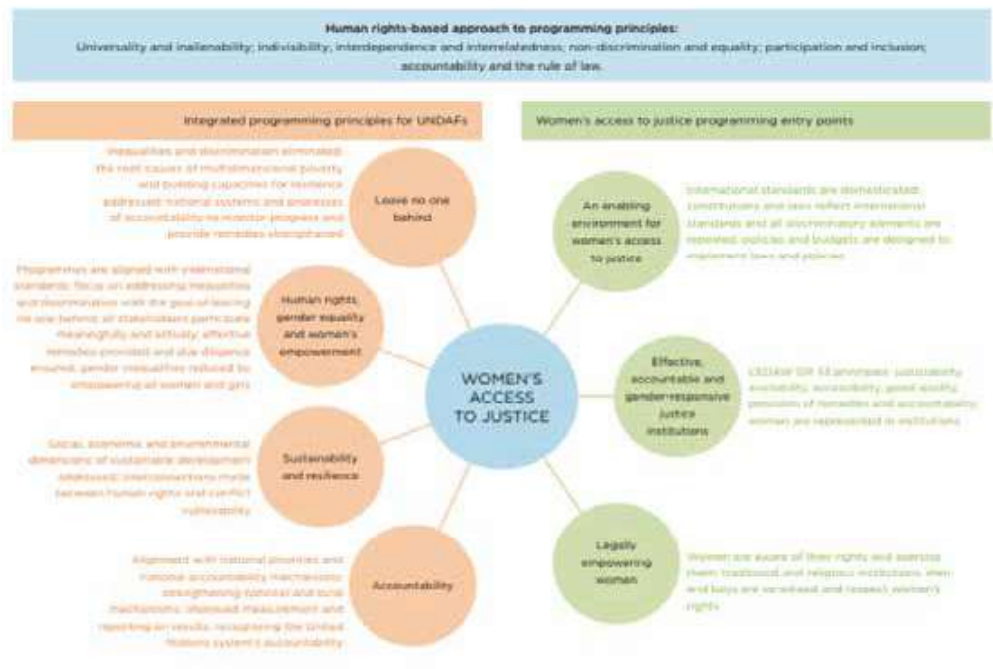
Most girls and adolescents will face some form of violation of their rights by the time they reach 18 years of age. They are at risk of early marriage in over 50 countries where the minimum legal age for marriage is lower for women than for men. One in three girls, mainly in developing countries, is married before the age of 18. One hundred million to 140 million girls and women worldwide have undergone female genital mutilation/cutting (FGM/C). Young girls and adolescents lack the voice and status to challenge discrimination, and young wives and mothers have few opportunities to influence the design of informal and formal justice systems so that programming can reflect and address their realities. Being young and female can be a potential source of intersectional discrimination, placing girls and adolescents at much higher risk for gender-based violence, especially during crisis situations, and a heightened likelihood for rape, early marriage, sexual exploitation, abduction and trafficking. Girls and adolescents also lack the social or legal capacity to make significant decisions about their lives in areas relating to education, health and sexual and reproductive rights. There is some urgency to target the

☒	needs of this group: the leading causes of death are suicide, complications during pregnancy and childbirth and AIDS.
Rural women ☒	Rural women live in locations where the availability of formal justice institutions may be limited, resulting in substantial direct and indirect costs of accessing justice (i.e., travelling long distances). For women who experience extreme poverty, high levels of illiteracy and lack knowledge of their rights and available services, the obstacles are much greater. Reliance on subsistence agriculture for sustained livelihoods demands that women possess secure land tenure, access to a home and an income, whether through inheritance, marriage or their own labour.
Indigenous, Afro-descendant and minority women ☒	Women from indigenous, Afro-descendant and minority (national, ethnic, religious and linguistic) groups experience intersectional discrimination resulting from experiences of colonization and militarization, as well as in their personal characteristics (e.g., sex, race, age and ethnicity). They may have limited legal awareness and suffer from inadequate legal protection. Furthermore, lack of intercultural approaches and recognition of their rights leads to limited confidence in State justice institutions and increased reliance on informal systems, which may uphold discriminatory patterns of behaviour and Practices.

Women living with HIV ☒	Women living with HIV experience at least three forms of intersectional discrimination: gender, HIV status and perceived disability. The HIV pandemic magnifies barriers and has a disproportionate impact on women. Women are most vulnerable to contracting HIV and least able to mitigate the impact of the virus if infected. Their rights are compromised because of their real or presumed status, or because of the fear or fact of HIV risk and vulnerability. Women living with HIV experience an ongoing continuum of human rights abuses within their families, communities and in legal and health-care settings that include, but are not limited to, violence, violations of sexual and reproductive rights and the denial of property and inheritance rights.
Women migrants ☒	Women migrants have limited legal protections as non-citizens or as undocumented migrants. They often work in invisible sectors as bonded labourers and domestic workers, outside the purview of government institutions responsible for enforcing employment standards and of law enforcement agencies. Linguistic and legal literacy challenges limit their ability to report abuse and identify institutions and organizations that can support them.

☒ Older women ☒	Older women are defined as those who are 50 years and above. They are disproportionately affected by unequal power relations within the home, illiteracy, discrimination in the distribution of productive resources, unpaid care work and gender bias in employment and in accessing services. Furthermore, older women experience heightened forms of violations of their rights and therefore exclusion and poverty. Compared to other groups, older women are also at greater risk of accusations of witchcraft, widowhood rites and deprivation of property.
☒ Sexual orientation and gender identity ☒	Lesbian, bisexual, transgender, intersex and related groups lack legal protection, particularly in the estimated 72 countries where consensual relationships between adults of the same sex are criminalized. Reports of the Special Rapporteur on violence against women, its causes and consequences notes alleged incidents of gang rape, corrective rape, family violence and murder experienced by lesbian, bisexual and transgender women in a number of countries, as a result of societal prejudices which often extend into the very systems where women seek protection.

Women with disabilities ⊗	Women and girls with disabilities experience discrimination and prejudice in both public and private spaces and crimes committed against women and girls with disabilities are not routinely exposed or reported. Moreover, the lack of accessible justice facilities and services to persons with diverse forms of disability (e.g., visual, physical, hearing, intellectual, mental), results in exclusion from protection and remedies.
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II Promoting equitable legal systems

INTRODUCTION

Across the world, women continue to face a wide range of inequalities and discrimination because they are women. Such gender inequality and sex discrimination takes diverse forms and result from the conduct of a variety of actors, across public and private spheres. For example, in a wide range of jurisdictions, laws and policies continue to actively discriminate against women in areas such as legal status, nationality, family and marriage, inheritance and property rights. Violence against women is pervasive, while legal and justice sector responses fail to effectively address, prevent and punish it. Discrimination against women and girls in the workplace, and in relation to education and healthcare, remains widespread. Meanwhile a series of barriers continue to impede women's access to legal protection and redress.

Indeed, in as much as the forms of discrimination against women and the factors behind it vary, so too do the measures required to address it. Ensuring the principle of gender equality is enshrined in domestic law and enacting legislation which prohibits discrimination in all aspects of women's lives and provides women with appropriate remedies are just some of the legal measures which international human rights law requires of states to prevent, address and redress gender discrimination and move closer to achieving gender equality. Yet they are vital. First, because such legal provisions provide women with a normative basis and procedural mechanisms on which to seek justice when they face varied forms of discrimination and inequality. Second, because they play a broader social role and constitute a crucial element in preventative and regulatory efforts. They not only send an important signal that gender inequality and discrimination against women are unlawful but also establish standards at the national level against which various actors can measure and improve their conduct.

THE GENERAL INTERNATIONAL OBLIGATION TO ENSURE EQUALITY AND FREEDOM FROM DISCRIMINATION

The international obligation to guarantee women's enjoyment of their human rights on a basis of equality and without discrimination is enshrined in a range of international human rights treaty provisions. This obligation requires States to respect, protect and fulfil women's human rights on a basis of equality and non-discrimination. On the one hand this means that States must ensure that officials refrain from conduct that directly or indirectly results in the denial of women's equal enjoyment of their human rights (respect). On the other it necessitates that States protect women from discrimination by private actors (protect). In addition, it requires States to

take a wide variety of proactive steps to ensure that women and men enjoy equal rights de jure and de facto (fulfil).

These interrelated obligations mean that among other things, States must:

- Eliminate direct and indirect forms of de jure discrimination and inequality, which manifest in laws, policies, regulations, and de facto inequality and discrimination, which manifest in practice.
- Protect women from these forms of inequality and discrimination wherever they occur, throughout public and private spheres and whether they are perpetrated by public authorities, the judiciary, organizations, enterprises or private individuals.
- Take measures to address: discrimination and inequality which arises due to biological and socially and culturally constructed differences between women and men; gender-based stereotypes, roles and norms; underrepresentation of women in key sectors and professions; and the unequal distribution of resources and power amongst men and women.

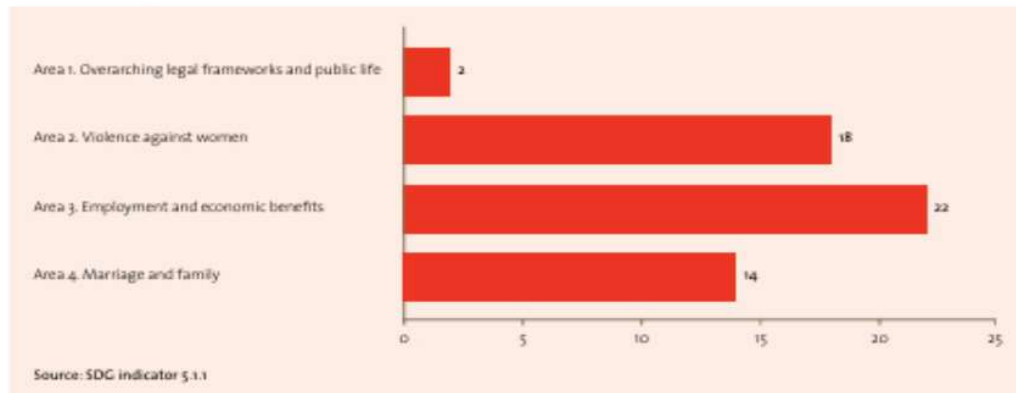
THE SPECIFIC OBLIGATION TO ESTABLISH EFFECTIVE LEGAL GUARANTEES OF NON-DISCRIMINATION AND EQUALITY

International human rights treaty monitoring bodies have repeatedly stressed that a key step towards compliance with these obligations involves ensuring that:

- Through constitutional or other legislative means, the principles of gender equality and non-discrimination against women are enshrined in domestic law and given overriding and enforceable status.
- Legislative provisions are enacted that expressly prohibit discrimination in all aspects of women's lives and throughout their lifespan.

However, international authorities have also underlined that the mere existence of such guarantees is not by itself sufficient. Compliance with international obligations not only requires that laws expressly guaranteeing gender equality and prohibiting discrimination against women be put in place: it also requires that states ensure that they are 'effective' or 'fit for purpose' and continuously monitor their implementation. To this end, international authorities have repeatedly identified a series of specific basic requirements that national legal provisions guaranteeing gender equality and non-discrimination must encompass in order to comply with international human rights law and standards.

Number of legal reforms between 2019 and 2023, by area



ENSURING LEGAL GUARANTEES OF EQUALITY AND PROHIBITIONS OF DISCRIMINATION ARE 'FIT FOR PURPOSE'

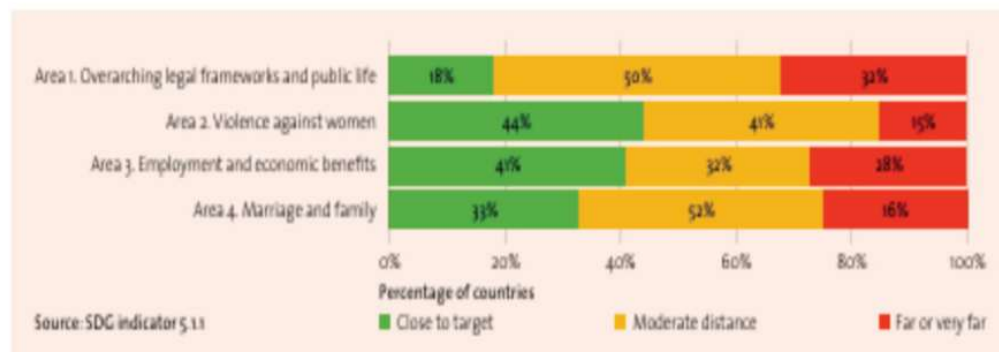
The first category of required elements which international authorities have identified can be broadly described as full and appropriate guarantees of equality and prohibitions of discrimination. As a minimum they must include the following:

- A guarantee of equality. Legislation should include a guarantee of substantive equality. This means that equality provisions must extend beyond guaranteeing equality in and before the law and should also guarantee equality in practice.
- A clear and comprehensive definition of discrimination. Including a definition of discrimination which clearly identifies the conduct that constitutes discrimination is a necessity for effective legal provisions. The definition should mirror the elements included in Article 1 of CEDAW and should include direct and indirect discrimination through conduct and omissions. No exceptions, qualifications or limits should be included. Specifications may be necessary to explain that temporary special measures to advance gender equality, or measures to protect the rights of women in the context of pregnancy and childbirth, do not constitute discrimination.
- A full prohibition of discrimination in public and private spheres. Equality and non-discrimination laws must include a comprehensive prohibition of discrimination against women in all aspects of women's lives and throughout their lifespan. This means that they must prohibit both direct and indirect, de jure and de facto discrimination in all sectors of society by both public and private actors. For example prohibitions must be applicable in respect of the conduct of public authorities, the judiciary, organizations, enterprises and private individuals

In addition to these minimum requirements, best practices also indicate that gender equality and non-discrimination legislation should also address the following issues:

- Sexual harassment. As noted above, international law specifies that gender-based violence constitutes discrimination against women and imposes a range of stringent legal responses by States to such violence. Sexual harassment is one form of gender-based violence. Among other required steps, good practice indicates that including an express prohibition and definition of sexual harassment in gender equality or sex-discrimination laws is an appropriate measure.
- Recognition of intersectional discrimination. Women often face discrimination not only on the basis sex, but also on other grounds, for example race, ethnicity, nationality, religion, language, marital status, social and economic status, age, place of residence, birth, descent, disability, sexual orientation and gender identity. These intersecting forms of discrimination often have compounded negative impacts and will often affect women differently than male members of these groups. States are obliged to legally recognize and prohibit these intersectional forms of discrimination. Although there are different legislative mechanisms by which they can do this, good practices indicate that including provisions on intersectional or multiple forms of discrimination within gender equality laws may be the most effective way of doing so.

Global distance to target, by area



ENSURING REMEDIES, ENFORCEMENT AND MONITORING MECHANISMS ARE 'FIT FOR PURPOSE'

The second category of required elements are those that are necessary to ensure express legal guarantees of gender equality and prohibitions of discrimination against women are enforceable and enable accountability and redress in practice. They include: effective implementation and monitoring procedures, accessible and effective legal remedies and dissuasive sanctions. Minimum requirements include:

- Clear assignment of responsibilities and monitoring mechanisms. Laws that outline gender equality guarantees and define relevant policy commitments for implementation by State actors will have little impact where they fail to delineate which State actors are responsible for these commitments. Legal provisions outlining policy commitments and pledging action need to clearly designate in each case which public body is responsible for ensuring their implementation. Similarly, laws must establish a process by which their implementation can be monitored and evaluated on an ongoing basis and again must explicitly assign responsibility for oversight to a specific public body.
- Sanctions and penalties. Prohibitions of discrimination against women must be accompanied by explicitly delineated sanctions in case of their breach. The efficacy of gender equality laws will be undermined where they do not outline the applicable sanctions that will apply in case of breach. The lack of explicit sanctions provisions restricts the deterrent effect of such laws and fail to provide an incentive for change. States must also ensure that the applicable penalties are effective, proportionate and dissuasive. A range of flexible pecuniary and non-pecuniary measures must be provided for.
- Complaint procedures and redress. Laws prohibiting discrimination and promoting gender equality must provide women who are subjected to discrimination with appropriate remedies. This means that laws must expressly outline effective remedial procedures and must clearly define the forms of redress available.

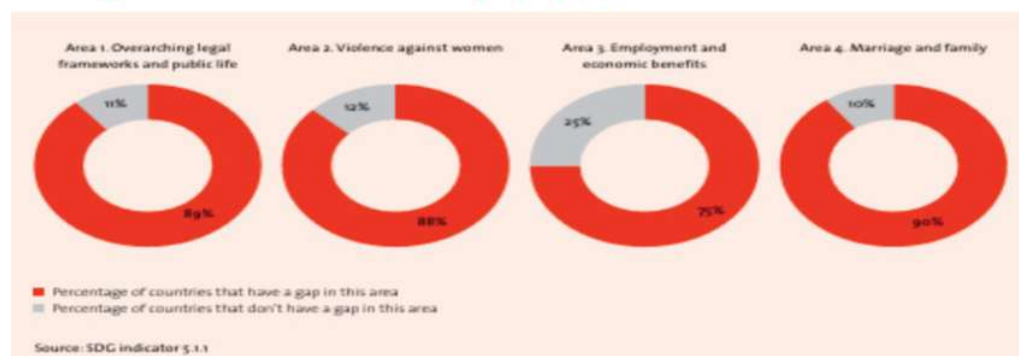
To be 'effective', remedial procedures or complaints processes must not be theoretical or illusory and must meet a number of criteria:

1. They must enable recourse to functional independent and impartial bodies, with the authority to make enforceable decisions, impose sanctions and award remedies.
2. They must involve a right of appeal from any decision of those bodies to a higher, judicial court or tribunal.

3. They must involve a clear and well-defined procedure, in terms provided for by the law, for establishing liability.
4. They must be available in relation to discrimination by public authorities, private institutions and individuals.
5. They must be affordable, such that legal aid and free legal assistance should be provided for women without adequate means. In addition in such cases exemptions from procedural costs and court fees should apply.
6. They must be timely.
7. They must be physically accessible.

Ensuring the right to redress also requires that a range of measures may be ordered, including restitution, rehabilitation, satisfaction, guarantees of non-repetition and compensation. The stated needs and wishes of the victim must be taken into account in determining the appropriate forms of redress in a given case.

Percentage of countries that have continuing legal gaps, per area

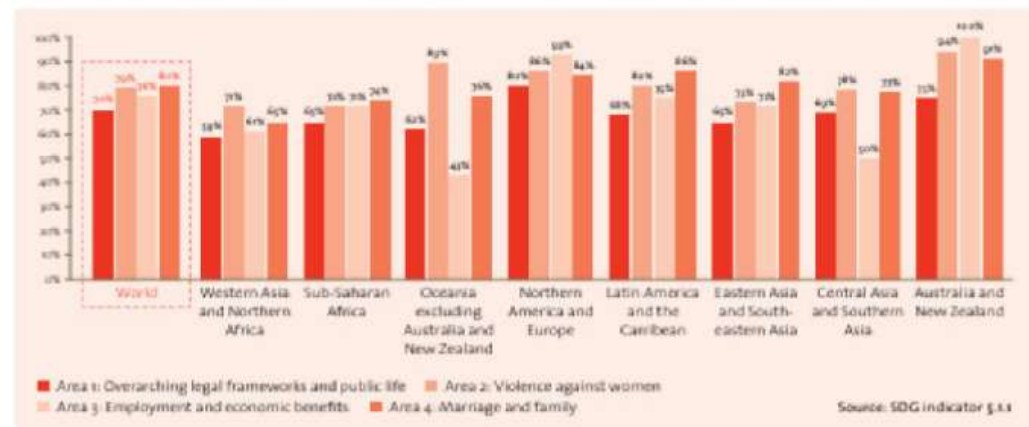


In addition to these fundamental requirements of international law, best practice indicates that remedial procedures in discrimination cases should encompass the following elements:

- **Burden of proof.** Increasingly in non-criminal claims of discrimination jurisdictions are placing the burden of proof on the alleged perpetrator to show that the discrimination did not occur. This burden is imposed when the complainant has established facts from which it may be presumed that discrimination has occurred, i.e. has made a prima facie case.
- **Standing.** Best practice indicates that not only should individual women have standing before the established remedial procedure, but that non-governmental organizations and associations should also have the standing to file claims. This is a particularly important measure in steps to address systemic discrimination, or where resource or safety concerns impede victims from seeking justice themselves.



Regional average achievement score, by area



69% of countries have established specialized independent bodies that receive complaints of discrimination based on gender, such as national human rights institutions, women's commissions, or ombudspersons.

78% of countries provide budgetary commitments for the implementation of programmes, activities or services addressing violence against women.

74% of countries have national action plans, policies or strategies to address violence against women.

85% of countries provide or subsidize childcare.

80% of countries have no limitations on women's capacity by ensuring that women and men have equal rights to be recognized as head of household, obtain an identity card, apply for a passport, and choose where to live and their profession.

GOOD PRACTICES BUT LEGAL GAPS

Area 1 – Overarching legal frameworks and public life

Area 1 – Overarching legal frameworks and public life



NON-DISCRIMINATION

Good practice antidiscrimination laws prohibit direct (different treatment explicitly based on grounds of sex and gender) and indirect (seemingly gender-neutral criteria which in their actual effect have a detrimental impact on women) discrimination against women (see article 1 of CEDAW which provides a comprehensive definition of discrimination against women).

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In Armenia, the Law on Equal Rights and Equal Opportunities for Men and Women prohibits discrimination and harassment in the public and private sector in a broad range of spheres, including employment, education, science and sports, social security, judiciary and administration, housing, public information and media, and defense and security. The law specifically defines and prohibits both direct and indirect gender-based discrimination.

In the Philippines, the Magna Carta of Women defines “discrimination against women” as any gender-based distinction, exclusion, or restriction which has the effect or purpose of impairing or nullifying the recognition, enjoyment, or exercise by women, irrespective of their marital status, on a basis of equality of men and women, of human rights and fundamental freedoms in the political, economic, social, cultural, civil, or any other field. It includes any act or omission, including by law, policy, administrative measure, or practice, that directly or indirectly excludes or restricts women in the recognition and promotion of their rights and their access to and enjoyment of opportunities, benefits, or privileges.

56%

of countries do not have a non-discrimination law that prohibits both direct and indirect discrimination against women.



QUOTAS FOR WOMEN FOR NATIONAL PARLIAMENT

Women continue to be underrepresented at all levels of political leadership. Good practice includes putting in place temporary special measures, such as legislated quotas, which have the capacity to accelerate the elimination of discrimination against women and equal participation of women in the political, economic, social, cultural or other fields.

¶

In Bolivia, the Electoral Regime Law mandates gender equality and equal opportunities between women and men by requiring that the lists of candidates for Senators, Deputies, Departmental and Regional Assembly Members, Councilors and Municipal Councilors, and other elective authorities, holders and alternates, respect gender parity and alternation between women and men so that there is a female nominee and then a male nominee; a female alternate candidate and then a male alternate candidate, successively. At least 50% of the candidates are required to be women.

In Rwanda, the Constitution of Rwanda stipulates that there must be 30% of women in decision-making organs, as well as in the Chamber of Deputies and in the Senate. It also states that 24 of the 80 seats of the Chamber of Deputies are reserved for women. The Electoral Law also confirms that 24 seats in the Chamber of Deputies will be reserved for women and that at least 30% of candidates on the closed list must be women.

In the Republic of Moldova, according to the 2023 Electoral Code, the lists of candidates for the parliamentary and local elections are drawn up respecting the minimum representation quota of 40% for both sexes. Positioning of candidates on the list is done according to the formula of a minimum of four candidates for every ten seats.

51% of countries do not have legislated quotas for women (reserved seats or candidate quotas) for national parliament.¹⁴



CITIZENSHIP

Gender discrimination in nationality laws perpetuates women's unequal status in society and the family. Additionally, gender discrimination in nationality laws places many children worldwide at risk of statelessness and can result in wide-ranging violations of children's rights, including obstacles to family unity, freedom of movement, access to education, healthcare, and social services, the right to an inheritance, and freedom from child marriage, in addition to other hardships and rights violations. Good practice laws ensure that women and men have equal rights to confer citizenship to their children and spouses.

In Ethiopia, the Ethiopian Proclamation on Nationality allows all Ethiopian nationals to pass citizenship to children and spouses, without distinction based on gender. Liberia in 2022 amended its nationality law to grant women and men equal rights to confer nationality to their children after participating in UNHCR's #IBelong Campaign to End Statelessness. In Suriname, the Nationality and Residence Law grants Surinamese women the same rights as men to pass their nationality to their children and spouses.

Area 2 – Violence against women



MARITAL RAPE

Laws that exclude marital rape from the prohibition of rape strengthen patriarchal family structures and fail to address discrimination and violence against women. Good practice laws prohibit marital rape and remove any legal barriers to women's ability to file a complaint for rape against her husband or partner.

In Cyprus, the Domestic Violence (Prevention and Protection of Victims) Law states that the offences of rape and attempted rape under the Penal Code may be deemed to be committed by a spouse against a spouse. In Trinidad and Tobago, the Sexual Offences Act explicitly criminalises the act of rape between persons in marital relationships, by making it clear that the section applies to a husband, or any cohabitant in relation to the commission of the offence of rape on his wife.

In Nepal, the Muluki Ain (General Code) defines the offense of rape as a person entering into sexual intercourse with a woman without her consent or with a girl below the age of sixteen years with or without her consent. The law further clarifies that consent taken by using fear, coercion, undue influence, misrepresentation or use of force or kidnapping or hostage taking (abducting), as well as consent taken when the woman is not in a conscious condition shall not be considered consent.

14% of countries do not criminalize marital rape or entitle a woman to file a complaint for rape against her husband or partner.



DEFINITION OF RAPE

Legal definitions of rape have evolved over time, from requiring use of force or violence, to a basis of lack of consent. Good practice laws remove any requirement that the victim produce proof of penetration or force or violence and base the legal definition of rape on lack of freely given consent, taking into account coercive circumstances.

¶

Sweden in 2018 changed the legal definition of rape to sex without consent. Prosecutors no longer have to prove the use or threat of violence or coercion. In the United Kingdom, the Sexual Offences Act defines several types of sexual offences based on an intentional act by person A against person B, where person B did not consent and person A did not reasonably believe that there is consent. The law further notes that whether a belief is reasonable is to be determined having regard to all the circumstances, including any steps the perpetrator has taken to ascertain whether the victim consents.

Area 3 – Employment and economic benefits



LABOUR RESTRICTIONS

The adoption of more equal laws pertaining to women's access to the workforce is positively associated with more equal labour market outcomes and improved human capital, which cannot be met only by male workers. Restricting women's occupational choices leads not only to job segregation, but also to labour market distortions, lower wages, and less innovation and productivity. Prohibiting women from working the night shift may negatively affect their career progression.¹⁵

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Pakistan in 2021 lifted restrictions on women's ability to work at night. The United Arab Emirates in 2019 lifted restrictions on women's ability to work at night and in jobs deemed dangerous. It also eliminated restrictions on women's employment in the mining, manufacturing, agriculture and energy industries.

Viet Nam in 2019 repealed and replaced its 2012 labour code with a new labour code which eliminated restrictions on women's employment in jobs deemed dangerous.

In **51%** of countries there is at least one restriction preventing women from doing the same jobs as men.¹⁵



EQUAL PAY

Laws guaranteeing equal pay are essential for closing the gender wage gap and contributing to women's economic empowerment. Good practice laws refer to the standard of "equal remuneration for work of equal value" allowing for the comparison of not only the same jobs but also different jobs of equal value, including jobs in a different workplace or under a different employer (see ILO Convention 100 on Equal Remuneration).

¶

Costa Rica in 2019 enacted the Law on Salary Equality between Women and Men (No. 9677), which amends article 14 of the Law Promoting Social Equality for Women on equal pay. It states that "Women shall have the right to equal pay with men, both in the private and public sectors, for work of equal value under the same employer, whether it is the same position or different positions of equal value, or in similar or reasonably equivalent functions."

In Croatia, the Labour Act of Croatia guarantees equal pay for work of equal value, providing examples of the different circumstances that would amount to "work of equal value", and defining "pay" expansively to include minimum salary and any additional benefits of any kind, whether directly or indirectly by the employer, in cash or in kind. In addition, unequal remuneration on the basis of gender is a form of gender discrimination under the Law on Gender Equality.

In **44%** of countries, the law does not mandate equal remuneration for work of equal value.



MATERNITY LEAVE

Paid maternity and parental leave schemes for women are critical family-related provisions that facilitate women's employment and enhance their income security, while making it possible for both women and men to spend time caring for young children. Good practice laws provide for a minimum of 14 weeks of maternity leave with at least two-thirds of the mother's previous earnings (see ILO Maternity Convention 2000 (No.183)).

¶

In Mauritius, the Workers' Rights Act requires every employer to ensure that the remuneration of a worker shall not be less favorable than the remuneration of another worker performing work of equal value. Jordan in 2019 enacted a new labour law (Labour Law No. 14 of 2019) and introduced the principle of equal remuneration for work of equal value. In Thailand, the Labour Protection Act (2019) states that it is required that male and female employees who perform work of the same type, quality, quantity, or work of equal value must receive equal compensation, which includes equality in wages, overtime payments, payments for work performed on holidays, and overtime payments for work performed on holidays.

In Bulgaria, the Labour Code guarantees women 410 days of paid maternity leave and the Social Insurance Code sets the daily maternity leave cash benefit at 90% of average daily gross wage for the period of 24 calendar months preceding the month of maternity leave (subject to a minimum and maximum amount).

In New Zealand, the Parental Leave and Employment Protection Act guarantees 26 weeks of primary carer leave. Parental leave payments are paid weekly for one continuous period of up to 26 weeks and are equivalent to 100% of the primary carer's ordinary weekly pay (subject to a maximum).

In Paraguay between 2015 and 2018, the Law on the Promotion, Protection of Maternity and Support for Breastfeeding gradually increased the duration of maternity leave from 14 to 18 weeks and the amount of maternity benefits from 50% to 75% of the woman's previous earnings.

Area 4 – Marriage and family



AGE OF MARRIAGE

Child, early and forced marriage disproportionately affects women and girls globally, disrupting their education, making them more vulnerable to violence, discrimination and abuse, fueling higher than average maternal mortality rates and preventing their full participation in economic, political and social spheres. Good practice laws provide a minimum age of marriage of 18 for both women and men without exceptions.

Côte d'Ivoire in 2019 passed a bill that set the minimum age of consent for marriage to 18 years for both sexes and did away with special dispensations. In Ecuador, the Civil Code establishes the legal minimum age 18 years for both women and men with no exceptions.

Finland in 2019 adopted changes to its Marriage Act through the Child Custody Act, revoking all special exceptions to the minimum age of marriage. In Nigeria, the Child's Rights Act provides that no person under the age of 18 years is capable of contracting a valid marriage, and no parent, guardian or any other person shall betroth a child to any person. Finland in 2019 adopted changes to its Marriage Act through the Child Custody Act, revoking all special exceptions to the minimum age of marriage. In Nigeria, the Child's Rights Act provides that no person under the age of 18 years is capable of contracting a valid marriage, and no parent, guardian or any other person shall betroth a child to any person.

In **72%** of countries, the minimum age of marriage is not at least 18 years, with no legal exceptions, for both women and men.

PRIORITY ACTIONS TO ENHANCE PROGRESS

Eliminate all persisting discriminatory laws.

Put in place strong legal frameworks that advance gender equality in all areas.

Building on legal reforms, ensure full implementation of laws and monitor their impact, accompanied by adequate resources, infrastructure and capacity-building.

III Addressing discriminatory laws, policies and structural barriers

SUBSTANTIVE EQUALITY: A CONCEPTUAL FRAMEWORK

The principle of equality in international human rights instruments is expressed in very general and open-textured terms. Thus, Article 2 of the Universal Declaration of Human Rights provides that every human being is entitled to all the rights and freedoms within the Declaration 'without distinction of any kind, such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status'. Similarly the International Covenant on Civil and Political Rights requires States to respect and ensure the rights in the Covenant 'without distinction', while the International Covenant on Economic Social and Cultural Rights requires State parties to guarantee that the rights enunciated in the Covenant will be exercised without discrimination of any kind on the grounds mentioned in the UDHR). Both the ICCPR and ICESCR have specific provisions for the 'equal right' of women and men to the enjoyment of all rights in the respective Covenants. The Convention on the Elimination of All Forms of Discrimination against Women focuses specifically on women, stating that 'discrimination against women' shall mean 'any distinction, exclusion or restriction made on the basis of sex which has the effect or purpose of impairing or nullifying the recognition, enjoyment or exercise by women, irrespective of their marital status, on a basis of equality of men and women, of human rights and fundamental freedoms in the political, economic, social, cultural, civil or any other field'

The generalized, open-textured reference to equality and non-discrimination has made it possible for the interpretation of equality to evolve as the problems faced by women are better understood and as new challenges arise. The first step in the development of a legal principle of equality requires the dismantling of formal legal impediments. These include the exclusion of women from the right to vote or hold public office, to enter into the paid labour market, to hold property or to have custody over their own children. In many countries, legal equality was only achieved in the first part of the twentieth century, but in a disturbing number of countries, such equality has still not been achieved. This is reflected in the number of reservations entered to CEDAW, many of which are entered by States that cite Sharia law as regulating matters of personal status such as marriage, divorce, custody and inheritance. As many as 30 States have entered reservations to Article 16 of CEDAW either in part or in full. Such reservations 'relegate laws and practices that critically affect women's human rights to a system that is unreachable by and unaccountable to international norms'. Legally mandated and institutionalized inequality between women and men has a serious effect

on women's ability to access economic resources and empowerment. In some countries, exemptions from the constitutional equality guarantee are provided for personal or customary law, with the result that it remains legal to discriminate against women in relation to marriage, divorce, marital property ownership, and succession. Examples of practices that might fall within this exception and that directly impact women's economic opportunities and affluence include early marriage, property grabbing by the husband's family on his decease, and polygamy. In rural areas, customs and traditional practices frequently prevent women from inheriting or acquiring ownership of land and other property and from accessing financial credit and capital. The fact that women are subjected to de jure discrimination in relation to marriage, succession, divorce, custody of children, social security, and other rights also has significant consequences for their ability to access paid work.

Women who are subject to early marriage, to treatment as minors under the guardianship of male relatives, to eviction from their property on widowhood, and to other legal forms of discrimination are inevitably highly limited in their ability to undertake paid work or to benefit from paid work in terms of income, training, career progression, or solidarity at work. Without secure rights to education, property, social security, or contract, labour market participation is severely compromised: where women can access jobs at all, they are likely to be precarious or on poor terms and conditions. This is often exacerbated by the absence of reproductive rights, prohibitions on abortion, and express legal prohibitions, such as 'protective legislation' barring women from certain types of work or night work. Although equality before the law is a major achievement, it is far from sufficient. In many countries, women are still subjected to discriminatory customary and religious norms that directly impact inheritance, property ownership, rights on divorce and widowhood, and access to resources. Even where such patterns do not exist, women are still unequal in the labour market and the home. Particularly pervasive is gender-based violence, which continues to occur at alarming rates across the globe and frequently remains without legal sanction. This reflects the need for a legal approach that goes beyond equality before the law and takes the form of legal prohibitions on discrimination or unequal treatment, whether by public or private actors. The starting principle has generally been that of equal treatment or a prohibition of direct discrimination. Direct discrimination is based on the underlying principle that likes should be treated alike. It prohibits less favourable treatment on the grounds of sex or other 'protected' characteristic. In the United States, this has taken the form of the 'anti-classification' principle.

The equal treatment or anti-classification principle remains of central importance in addressing blatant prejudice, that is, where women are treated less favourably than men simply because they are women. However, this principle cannot address more institutional or deep-seated forms of inequality. There are several reasons for this. First, the principle of equal treatment only applies if there is a similarly situated man who has been more favourably treated on grounds of sex than the woman. The reliance on

a male comparator is a highly conformist principle. In the powerful words: 'Concealed is the substantive way in which man has become the measure of all things. Under the sameness standard, women are measured according to our correspondence with men. Gender neutrality is thus simply the male standard. For example, women will only be entitled to equal pay or equal treatment to men if they can do the same jobs and work the same hours as their male counterparts. Women with childcare responsibilities will be excluded from equal treatment unless they can find other women to look after their children, and the latter are invariably low-paid.

The principle that likes should be treated alike is particularly ill-suited to deal with pregnancy as there is no suitable comparator for pregnant women. It is also unsuited to deal with the wage gap in situations of job segregation. Where women are clustered in low-paying occupations, there may be no male comparator doing like work for higher pay. Thus, the principle of equal treatment requires women to conform to male-oriented social structures. It does nothing to challenge the structures themselves. Second, the principle that likes should be treated alike is a symmetric principle. It assumes that any different treatment on the grounds of sex is wrong in itself, regardless of whether it aims to perpetuate or redress pre-existing disadvantage.

Yet unequal treatment might be necessary to achieve equal results, particularly where women have been subjected to disadvantage in other spheres. Third, as long as men and women are treated alike, there is no difference in principle between treating them equally badly and treating them equally well. Moreover, because the equal treatment principle is agnostic as to the substantive outcome, it can be fulfilled by removing benefits from men rather than extending benefits to women. The result is that women might be worse off and men no better off. Fourth, the equal treatment principle assumes that the cause of the violation can be traced to the behaviour of individual perpetrators.

Yet structural inequality requires change even if no individual or state body can be proved to be 'at fault'. It was to address these limitations of the principle that likes should be treated alike that substantive equality was developed. To do so, substantive equality should have at least four features. First, it should be asymmetric. That is, it should distinguish between different treatment that causes further detriment to a disadvantaged group and different treatments that aims to redress past disadvantage and therefore improve the position of a disadvantaged group. Second, it should move away from the assumption of conformity to a male norm. Instead, it should accommodate differences and change existing structures. Third, it should insist on levelling up rather than down. And fourth, it should entail a positive responsibility to bring about change, regardless of whether individual culpability or violation has been established. Several different concepts have been used to address these challenges, such as equality of results, equality of opportunity, and equality of dignity. All of these have their advantages and limitations. Drawing on their strengths leads to a four-dimensional approach

to equality.

Redressing Disadvantage

The first dimension of substantive equality concentrates on remedying disadvantage rather than achieving gender neutrality. Disadvantage is both material and social. Gender-based disadvantage includes the lack of empowerment of women within the context of family and social relations. Substantive equality aims to redress disadvantage in its specifically gendered context, including women's subordinate position in the family and reproduction, in the paid workforce, and in other relationships of power. The focus on redressing disadvantage has two important implications. First, it is incompatible with a 'levelling down' solution, as only if the position of those who are worse off is raised to that of the better off can equality in this sense be satisfied. Second, it contemplates different treatment to redress disadvantage. This means that affirmative action measures in favour of women do not breach the principle of equality as long as they aim to redress discriminatory disadvantage.

Stigma, Stereotyping, Humiliation, And Violence

The second dimension of substantive equality includes stigma, stereotyping, humiliation and violence on grounds of gender. This dimension is best understood in terms of what Nancy Fraser calls 'recognition' wrongs. The concept of 'recognition' is based on the Hegelian notion that our identity is constructed in terms of the ways in which others regard us. 'Recognition' wrongs consist in 'misrecognition' or inequality in the mutual respect and concern that people feel for one another in society. Such wrongs can be experienced regardless of relative socio-economic disadvantage and distributive wrongs.

Accommodation And Transformation

The third dimension of substantive equality entails a recognition of the ways in which the structures of society entrench women's disadvantage. Instead of requiring women to conform to male norms, it requires transformation of existing male-oriented institutions and social structures. With this comes the imperative to transcend the public-private divide, recognizing the ways in which imbalances in power in the family can reinforce power imbalances in the public sphere and vice versa. This in turn entails the requirement of positive duties to achieve equality as well as negative duties to prevent discrimination. Substantive equality also requires the accommodation of differences between women.

Agency And Voice

The final dimension of substantive equality is the importance it attaches to women's agency and voice. As has been recognized in several jurisdictions, equality should specifically compensate for the absence of political power of groups to whose needs and wishes elected officials have no apparent interest in attending. Substantive equality requires decision makers to hear and respond to the voices of women rather than imposing top-down decisions. The challenges of giving women a voice cannot be underestimated. Articulating women's interests from a gendered perspective requires closer attention to the diversity of women's voices, to the possible disjuncture between those who speak and those who are affected, and to the need to ensure that the least vocal are nevertheless heard. Moreover, as much as women's voices should be heard in engendering social and economic rights, so social and economic rights are necessary to give women the capability of articulating their perspectives. Substantive equality also has the important effect of imposing positive duties on the state to treat women differently, provide opportunities for participation, and restructure institutions appropriately.

Interaction Between The Dimensions

One of the key advantages of a multi-dimensional approach is that it provides a framework within which to address the interaction between dimensions. The idea of the four-dimensional structure is to draw explicit attention to all four dimensions in evaluating positions or programmes. Rather than viewing one as a trump over the others, the dimensions should mediate each other, leading to a synthesis or more nuanced response. For example, measures aimed at redistribution can themselves cause recognition harms, such as the stigma experienced by welfare beneficiaries. Affirmative action measures are similarly said to be associated with increased stigma. The four-dimensional approach makes it possible to address these tensions. Given that equality aims to redress disadvantage as well as to address stigma, it is crucial to design both welfare and affirmative action measures in ways that advance dignity as well as redistribution.

On the other hand, simply addressing recognition harms without paying serious attention to structural change, such as improving the quality of educational provision, is unlikely to achieve substantive equality. Moreover, affirmative action measures may not be sustained unless there is an underlying structural or transformative change. For example, in the United Kingdom, the increase in women Members of Parliament following on the Labour Party's policy of 'women-only shortlists' was soon reversed because there was no change in parliamentary hours, which makes it very difficult to be a participative parent. Similarly, the multi-dimensional approach precludes the argument that measures increasing disadvantage do not breach equality because they have no impact on the dignity of the claimant.

The participatory dimension also needs to be considered together with other dimensions. While voice is important, it is not necessarily an end in itself if those women who speak have the effect of worsening other women's disadvantage or perpetuating stigma, prejudice or violence. As an extreme example, the fact that some women perpetuate harmful practices such as female genital mutilation or breast ironing does not in itself justify the devastating effects on women.

Substantive Equality: Legal Concepts

Concepts and terminology within the framework of substantive equality have evolved in the enactment and interpretation of equality at the international and domestic level. Particularly important was the development of the concept of disparate impact, developed by the US Supreme Court to address the limitations of sole reliance on the principle of equal treatment. In the landmark case of *Griggs v Duke Power*, the employer had applied a uniform aptitude test to both white and African American job candidates. But because African-American applicants had long received inferior education in segregated schools, the test operated to disqualify such applicants at a substantially higher rate than whites.

The court held that, under Title VII of the Civil Rights Act, equal treatment could be discriminatory if it led to unequal results unless justified by business necessity. In the United Kingdom and the European Union, this principle is known as indirect discrimination. Indirect discrimination makes it unlawful to apply an apparently neutral criterion, provision or practice that puts persons of one sex at a particular disadvantage compared with persons of a different sex, unless it is a proportionate means of achieving a legitimate aim. At the same time, the concept of indirect discrimination or disparate impact is under sustained attack in the country of its origin – the United States. Soon after *Griggs*, the US Supreme Court held that the concept did not apply to constitutional review. Only in cases of purposeful discrimination could a violation of the Equal Protection Clause in the 14th Amendment of the US Constitution be established. More recently, some justices in the US Supreme Court have doubted whether the concept of disparate impact is ever compatible with the constitutional equality guarantee. Addressing indirect discrimination is an important step towards substantive equality in that it focuses on equality of impact rather than equality of treatment. For example, if workers' pensions depend on contributions through a continuous working life, then women who have had to take time out for childcare will be subject to a particular disadvantage.

However, indirect discrimination is an incomplete version of substantive equality. A major reason for this is that inequality of results may be justified for business reasons or even on the grounds of state public policy. For example, if it can be shown that a qualification is necessary for the proper fulfilment of the job, there is no indirect discrimination. On its own, the principle of indirect discrimination does not require steps to be taken to

improve the skills or qualifications of the disadvantaged group. In this sense, it does not redress disadvantage, nor require institutional change, and therefore does not satisfy at least two of the dimensions of substantive equality.

A further and related legal concept aiming to advance substantive equality is that of reasonable accommodation or adjustment. This principle requires an express adaptation of the existing environment in order to make it possible for a disadvantaged individual to participate. It works best in relation to disability, where it imposes a duty on employers, service providers or other public bodies to find a way of reasonably accommodating the needs of a person with a disability so that she can participate fully in a job or service. However, accommodation is usually addressed to the individual rather than the overall structure. In addition, it is limited to 'reasonable' adjustment, or adjustment without causing the provider undue hardship.

Multiple Locations And Identities

The fact that women have multiple locations and identities impacts on their experience of discrimination and the need for an approach to equality that can recognize and deal with these complexities. Thus, in a particular country, laws relating to dress codes might operate harshly against Muslim women but not against women of other cultures or Muslim men. The same is true for countries with Muslim personal laws, which impact on Muslim women but not on other women or Muslim men. Similarly, laws that prevent girls from inheriting might impact on African women subject to customary law but not on African men or on women of other racial or ethnic groups in that society.

A less direct example might occur where a company, trying to meet affirmative action targets on race and gender, hires white women and black men. Black women will lose out because the policy or law does not take account of what has been described as 'intersectional discrimination,' the combination of status-based inequalities that create additional forms of discrimination. Multiple forms of discrimination might also compound the experience of discrimination. Thus, all women might fear for their safety in a society where gender-based violence is common and policing is poor. However, poor women who cannot afford public transport and must walk home from work in the dark would face greater dangers than their better-off counterparts. Substantive equality requires detailed attention to the context in which discrimination occurs so as to unpack the often complex and hidden forms of gender inequality.

The Individual And The Group

A multi-dimensional approach also allows us to address one of the key challenges facing the move from formal to substantive equality, namely the relationship of the individual to the group or collective. Formal equality, and its associated legal principle of direct discrimination, tends to focus on the individual, the assumption being that prejudice and stereotyping are

generalizations that obscure individual merit. This in turn ignores the group-based nature of inequality and the need to address systems and institutions that perpetuate such inequality. On the other hand, a focus on groups might disguise intra-group inequalities and submerge individual agency and autonomy. In this context, it is important to be transparent about the interaction between the different dimensions. This requires us to ask whether affirming cultural diversity in practice aggravates women's disadvantage because of harmful intragroup practices in relation to women, or whether the real distinctions between women should be respected in order to enhance their choice and agency. Particularly important is the question of who speaks for the group and whether minority voices within the group can be heard. The multi-dimensional approach requires us to weigh cultural justifications against evidence of gendered stigma and disadvantage and the possibilities of meaningful consent and choice.

The Evolution Of Substantive Equality In International Human Rights Law

As was seen above, human rights instruments in international law follow similar patterns in their approach to the rights to equality and non-discrimination. The concept of equality tends to be stated in general terms, without further elaboration. The UDHR begins by affirming that 'all human beings are born free and equal in dignity and rights'. Both the ICCPR and ICESCR have specific provisions for the 'equal right' of women and men to the enjoyment of all rights in the respective Covenants. Several covenants have more specific provisions. Both the UDHR and ICCPR provide that men and women are entitled to equal rights in marriage and its dissolution.

The ICESCR provides for 'equal pay for work of equal value without distinction of any kind, in particular women being guaranteed conditions of work not inferior to those enjoyed by men, with equal pay for equal work'). The principle of non-discrimination has more explicitly evolved towards a substantive understanding. This can be seen in both CEDAW and the Convention on the Elimination of All Forms of Racial Discrimination, which go beyond the other conventions in that they include distinctions, inclusions or restrictions that have either the purpose or the effect of impairing the recognition, enjoyment or exercise of human rights. This recognizes that equal treatment might lead to unequal results, and therefore that it is not just the purpose but also the effect that matters. In its 1989 General Comment, the Human Rights Committee took the view that the more expansive definition in CEDAW and CERD should apply to the term 'discrimination' as used in the ICCPR. A second important step in the evolution towards substantive equality is the inclusion of positive duties on States to respect, protect and fulfil the rights to equality and non-discrimination.

The traditional view of equality and non-discrimination focuses on an individual interaction, requiring proof that a perpetrator has violated that non-discrimination norm resulting in damage to an individual victim. However, the focus on proof of breach by a named perpetrator means structural and institutional inequalities that cannot be traced to an individual perpetrator are outside the scope of enforcement. The seeds of such a positive duty are found in article 26 of the ICCPR, which provides that: 'All persons are equal before the law and are entitled without any discrimination to the equal protection of the law. In this respect, the law shall prohibit any discrimination and guarantee to all persons equal and effective protection against discrimination on any ground such as [the protected grounds]'. In its 1989 General Comment, the HRC has affirmed that this guarantees not only equality before the law and equal protection of the law, but also place a positive duty on the State to prohibit discrimination and guarantee equal and effective protection. Note also that whereas article 2 applies only to the rights contained in the Covenant, article 26 prohibits discrimination in any field regulated by public authorities.

However, the real push towards an integrated understanding of substantive equality focused on the re-interpretation of the meaning of 'temporary special measures' in CEDAW. Article 4 of CEDAW provides that 'adoption by States Parties of temporary special measures aimed at accelerating de facto equality between men and women shall not be considered discrimination as defined in the present Convention'. Special measures or affirmative action are controversial in that they appear to breach the equal treatment principle by requiring preferential treatment on the grounds of gender. However, once it is recognised that advantageous treatment might be necessary to counter previous disadvantage, it becomes clear that 'special measures' are not a derogation from equality, but a means to achieve it. The wording of article 4 of CEDAW demonstrates this tension. It appears to accept that gender-based provisions constitute a prima facie breach of the equal treatment principles, while at the same time recognizing that measures specifically benefiting women might be necessary. Hence, the need to call these measures 'special' and to insist that they are 'temporary'. In a very productive expert meeting in Maastricht in 2002, these tensions were explored as part of the process of formulating a new general recommendation on the issue of temporary special measures.

It was stressed that Article 4 makes it clear that 'accelerating de facto equality' of men and women is one of the goals of the Convention and therefore contributes to the understanding that substantive equality is prevalent in the Convention. Particular importance was placed in the meeting on the need to develop an understanding of substantive equality that made it clear that the adoption of measures benefiting women was not an exception to equality but a means of achieving it. For example, although CEDAW speaks with several different voices, it was argued that the conception of equality embodied in the convention should be regarded as a transformative one. In its landmark General Recommendation No. 25 on temporary special

measures, the CEDAW Committee stressed that the Convention was a dynamic instrument, which went 'beyond the concept of discrimination used in many national and international legal standards and norms'. Most importantly: 'In the Committee's view, a purely formal legal or programmatic approach is not sufficient to achieve women's de facto equality with men, which the Committee interprets as substantive equality. In addition, the Convention requires that women be given an equal start and that they be empowered by an enabling environment to achieve equality of results. It is not enough to guarantee women treatment that is identical to that of men. Rather, biological as well as socially and culturally constructed differences between women and men must be taken into account. Under certain circumstances, non-identical treatment of women and men will be required in order to address such differences. Pursuit of the goal of substantive equality also calls for an effective strategy aimed at overcoming the underrepresentation of women and a redistribution of resources and power between men and women.' Moreover, 'The position of women will not be improved as long as the underlying causes of discrimination against women, and of their inequality, are not effectively addressed.

The lives of women and men must be considered contextually, and measures adopted towards a real transformation of opportunities, institutions, and systems so that they are no longer grounded in historically determined male paradigms of power and life patterns. Several of the key aspects of the multidimensional understanding of substantive equality are clearly evident here. The lead taken by the CEDAW Committee was soon followed in relation to the ICESCR. In General Comment No. 16 in 2005, the Committee on Economic, Social and Cultural Rights elaborated on the meaning of article 3 of the Covenant, which provides for the equal right of men and women to the enjoyment of all economic, social and cultural rights. In this Comment, the Committee made it clear that 'The essence of article 3 of ICESCR is that the rights set forth in the Covenant are to be enjoyed by men and women on a basis of equality, a concept that carries substantive meaning. ...Guarantees of non-discrimination and equality in international human rights treaties mandate both de facto and de jure equality. De jure equality and de facto equality are different but interconnected concepts. Formal equality assumes that equality is achieved if a law or policy treats men and women in a neutral manner. Substantive equality is concerned, in addition, with the effects of laws, policies, and practices and with ensuring that they do not maintain, but rather alleviate, the inherent disadvantage that particular groups experience.

It should be noted that the reference to alleviating rather than maintaining disadvantage registers the commitment within substantive equality to a 'levelling up' approach. This also differentiates the equality right from basic minimum rights. As the Special Rapporteur on water has put it: 'While universality is about ensuring access for all, equality is about "levelling up" or working towards improving the quality and levels of service of groups that lag behind'. As will be seen below, however, the commitment to levelling up is under-developed in the practice of the committees. While the CESCR's

General Comment 16 was concerned with the equal rights of women and men, the later General Comment 20 in 2009 elaborated on a more general principle of non-discrimination on a wide range of grounds, including race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status. Building on the framework in General Comment, it specifically differentiates formal and substantive discrimination, where the latter requires 'paying sufficient attention to groups of individuals which suffer historical or persistent prejudice instead of merely comparing the formal treatment of individuals in similar situations. The General Comment is also more explicit than previous documents in distinguishing expressly between direct and indirect discrimination, and in its use of the concept of systemic discrimination, or discrimination against some groups that is 'pervasive and persistent and deeply entrenched in social behaviour and organization'.

Discrimination under different branches of law

i. CONSTITUTIONAL LAW AND CIVIL RIGHTS

Legal impediments to women's economic and political participation are often found in constitutional law, which provides for civil rights and civil liberties. Removing barriers to gender equality contained in legal provisions related to citizenship, the right to vote, and freedom of movement should be the first step in addressing gender equality and promoting women's economic empowerment. As the 2019 Women, Business and the Law report accurately explains, "a women cannot effectively look for a job or go on an interview if she cannot leave her home without permission." The report published by the High-level Group on Justice for Women estimates that about one billion people face challenges in proving their nationality and legal status. In fortyfive countries, women cannot apply for a passport or travel outside the country on the same terms as men. These types of discriminatory laws prevent some women and their families from accessing legal identity. These barriers are usually based on customary norms or belief systems where a woman's legal status was derived from her relationship with a man. For example, in about one quarter of the world's countries, women are not permitted to travel by themselves. If a woman is prevented from traveling due to a legal prohibition on travel, or her travel is subject to male consent, this hinders her job and business opportunities. One study has shown that the freedom of women to travel outside of home is positively correlated with the number of female firm owners.

In some countries the legal framework prevents women from voting and running for political office legally required quotas for women in leadership roles (in the public and in the private sectors) can significantly increase the number of women in those roles, thereby adding a more diverse perspective to the agendas. This can also be positively supported by reforming laws to adhere to principles of gender-budgeting, financial inclusion, and gender-mainstreaming at national, regional and local levels.

Legal literacy and access to justice for women is crucial to achieve gender equality. If women can access justice and their rights are appropriately enforced, this discourages gender-based discrimination. Conversely, the failure to enforce women's rights often perpetuates inequality. Access to justice for women entails the ability to exercise the same legal rights as men to sue (including the right to bring a legal case in front of the judiciary), apply for legal aid, provide testimony and obtain a fair trial. Often women experience legal restrictions in exercising their rights due to gender-based discrimination. Discriminatory laws prevent their cases from being sufficiently adjudicated. For example, in 48 countries, the testimony of women does not carry the same evidentiary weight as men.

ii. FAMILY LAW

Family law touches on the most intimate part of people's lives, regulating marriage, divorce, adoption, child custody and other domestic issues. It is the area of law most often affected by cultural norms and belief systems regarding the role of women and men in a household. Reforms pushing for women's rights are often met with greater resistance under the guise of conservation of national and cultural identity, which in turn cements the unequal distribution of power between women and men, and has a negative economic impact on women. Research shows greater female labor force participation rates where men have a higher share in childcare and other household responsibilities because it enhances the possibilities for women to combine work with having children. It is telling that Article 16 of the Convention on the Elimination of all forms of Discrimination Against Women (CEDAW), which provides for the equality of women in all matters relating to marriage and family relations, is the provision of this treaty to which the greatest number of countries have established reservations.

For this reason, family law often reflects gender inequality in society. In several countries, the legal age to marry is lower for women than for men. Early marriage may lead to early motherhood, which hinders girls' chances of continuing their education and thereby limits their prospects for work. This is closely connected to legal norms that provide for the husband's power over the marriage (and the wife's obedience respectively). A study found that legal discrimination against women in the form of limits on their ability to be head of household is negatively correlated with female labor force participation. It reduces their bargaining power when allocating roles within the family and ability to pursue professional roles outside the household. This is exacerbated when women do not have the same rights as men to divorce when they want to end a marriage.

iii. PROPERTY LAW

Property law governs the ability to collect, own, manage and transfer assets. Therefore, property law is an essential component of engaging in productive employment and entrepreneurship. Assets are needed to sustain a person's livelihood, provide for family members, help build wealth, and serve as collateral for credit. In addition, the ability to control and accumulate assets provides nonmaterial gains by providing tangible rewards for a person's efforts. Laws that prevent women from owning property and other assets can effectively hinder or significantly disincentivize them from participating in the economy. Research shows that control over earned income increases female labor supply and labor force participation.

Legal impediments related to property law appear in various forms. Some laws prohibit women from owning movable and/or immovable property on their own. Customary marriage and inheritance norms can further interfere with property rights. Because of laws hindering or prohibiting women from

owning, acquiring and disposing of assets, some women do not have the same access to financial services, including opening bank accounts. This in turn prevents them from building credit, borrowing and saving money, or obtaining insurance. Female entrepreneurship evidently suffers from all of these impediments and can be further dampened by legal constraints on signing contracts or registering a business.

Certain laws regarding marriage are related to property rights. Specifically, the distribution of property during a marriage and after a divorce often discriminates against women. Women are more often affected by the less favorable valuation (or non-valuation) of nonmonetary contributions in marital property regimes.

Many countries have laws that prevent daughters or female surviving spouses from inheriting property because they follow the cultural norm of male lineage. Reforms in this regard are the most difficult to pass due to strong adherence to social norms. This can have a detrimental impact on women because property, particularly land, is an important asset needed to secure credit, to provide for a family, to start or grow a business, and to build wealth.

iv. LABOR LAW

Employment is the most common way that women can participate and contribute to the economy. When women are prevented from obtaining employment, the economy loses a significant portion of potential for growth. The impact becomes even more important during a recession. Globally, 55 percent of adult women are in the labor market compared to 78 percent of men; moreover, women face a 37 percent wage and 51 percent income gap compared to the wages and income of men. The focus of equal rights advocacy lies on the equal value and share of work, and on equal distribution of burdens and benefits of work.

There are often legal restrictions to work, including laws that prohibit women from choosing a certain profession or industry according to their interests and abilities, as well as laws that require a spouse or other male relative to provide a work authorization. Around ninety economies still have at least one restriction on professions women can pursue (for instance, laws preventing women from undertaking work related to underground mining and handling industrial machinery). Studies show that such discrimination is a significant predictor for the gender wage gap.

As numerous organizations have found, women continue to be paid less than men for work of equal value. Data shows that fewer than half of countries have a law mandating equal pay for equal work. As the World Bank's study of legal reform over the past decades points out, the wage gap narrowed where legal reform showed greater strides towards equality and increased female labor force participation.

The lack of protection and failure to prevent gender-based discrimination and sexual harassment in the workplace often hinders women from obtaining jobs or advancing their careers. This begins with discriminatory hiring practices and later with concerns about unfavorable treatment and dismissal of women, especially when pregnant or after giving birth. Ninety-one percent of countries do not have laws prohibiting employers from inquiring about family status in hiring processes and 60 percent have no laws mandating non-discrimination in hiring.

Parenthood is the area with the most room for improvement in terms of gender inequality, as women typically bear the bulk of household responsibilities (including childcare and eldercare). However, progress has been made through law reform on this front in recent years. Many countries have adopted new laws aimed at alleviating the negative effects of childcare on women's careers through childcare allowances and parental leave benefits, including the right of men to take paternity leave to encourage them to share the household responsibilities with women. However, many countries do not yet provide for paid maternity and paternity leave and where countries do so, it is often the employer who bears the burden of cost, thereby reducing retention of female employees who become more costly than men. Generous parental leave provisions are however associated with smaller wage gaps in economies with a large formal sector.

Social security and pension laws affect women's retirement conditions negatively when they do not account for times of absence or part-time employment due to childcare. The statutory retirement age may also be different between women and men. Shorter working lives of women have a negative impact on their income, on their contributions and ultimately on their pensions. The gender wage gap also has a direct negative effect on pensions for women relative to men even when they have equal years of contributions to the social security system because women's salaries are usually lower than men's.

All of these issues may have an impact on a woman's decision to work.

v. TAX LAW

Certain revenue raising measures can result in taxation practices that discriminate against women and lead to distortions that result in higher tax burdens for them. These tax-induced gender biases, however, may not always be easily identifiable because sufficiently granular gender-disaggregated data are often unavailable to policy makers.

Governments do not always raise tax revenue in the most gender equitable way. Substantive tax legislation as well as tax procedural rules can exhibit both explicit and implicit gender biases.

Explicit gender bias is generally easily identifiable and is expressly specified in the language of the relevant tax law provisions. Some illustrative examples include explicitly assigning different tax rates to male and female taxpayers,

permitting tax preferences only for male or female taxpayers, or assigning joint business, asset income or childcare deductions or allowances only to males. While such direct forms of explicit gender bias are increasingly rare, more indirect forms still exist. For instance, where import taxes (or tariffs) are set at higher rates on women's goods than on the equivalent men's goods.

In the area of personal income taxation, the family-based method of determining income undermines the individual filing system and results in secondary earners (usually women who make less money and want to stay in the workforce) facing a higher marginal tax rate. Therefore, providing options for individual income taxation could be a necessary legal reform to increase female labor force participation. Even within income tax systems that impose a joint income tax on the household, it is possible to structure the income tax to reduce the higher effective tax rate on secondary earners, in particular through tax benefits (for instance, targeted tax reliefs) to promote the female labor supply. Other examples of implicit gender bias would be the availability of tax deductions for work expenses predominantly borne by men (for instance, uniforms or tools) but not for work expenses predominantly borne by women (for instance, the cost of daycare).

Implicit or explicit biases may also exist in tax procedural rules, such as the inability of spouses to separately file personal income tax returns, or where consent of the spouse is required where a possibility of separate filing exists. Such procedural requirements can impede women's economic empowerment.

In developing countries, for instance, where women are predominantly employed in the informal sector, gender inequality will be more difficult to address through tax measures affecting only the formal sector.

IMPACT OF CULTURAL NORMS, TRADITIONS, AND BELIEF SYSTEMS ON GENDER EQUALITY

There are various root causes for the existing inequality between men and women under law, including cultural norms, traditions and belief systems that are interpreted as promoting differential treatment of women. In addition, plural or inherited legal systems often facilitate the inclusion of legal provisions that have a gender bias. Legal reform can be utilized to change attitudes and behavior, and thus be an important tool to achieving gender equality.

i. CULTURAL NORMS AND BELIEF SYSTEMS

Many laws that prevent women from having the same legal status as men are derived from deep rooted cultural norms or other beliefs. For example, customary norms which provide that only men can be the head of household are often reflected in laws which prevent women from inheriting or owning property and reinforce the notion that a woman's role is in the home, thereby dampening her wage-earning power. It is often these cultural norms regarding a woman's role, and their embodiment in constitutional, family and property laws, that are the main obstacle to progress. If these underlying laws are discriminatory, then women are prevented from achieving their full economic potential.

There are various reasons for the persistence of norms and beliefs that impede the advancement of women's rights. Some argue that certain beliefs are harder to change because they are considered by society to be divinely inspired and sacred. Others argue that unequal treatment of women is the product of a culture of patriarchy and the consolidation of power in men, with religion serving as justification for conservative interpretations regarding gender roles. Legal reform becomes more difficult when interpretations endorsed by the state are reflected in the law because this calls into question not just the law itself but the traditions they exemplify. However, some countries have adopted legal reforms previously considered to be infeasible in light of prevailing norms and beliefs. For example, laws that provide that women only inherit half of what their brothers inherit have been challenged in some countries in recent years. Turkey replaced its inheritance laws and Turkish law now grants equal inheritance rights of land and nonland assets to female and male children and surviving spouses. Egypt amended its inheritance legislation in 2017 to impose strict sanctions on those who disinherit family members. Although the reform does not give women additional inheritance rights, it penalizes the illegal deprivation of those rights. Côte d'Ivoire amended its marriage laws in 2019 to facilitate women's access to credit by allowing them to use land as collateral. The former marriage

laws had restricted female spouses' rights to manage, dispose of, and inherit marital property.

ii. PLURAL LEGAL SYSTEMS

Many countries have plural legal systems that recognize different sources of law (e.g., common law, customary law, and religious laws). These plural legal systems accept that different legal systems can coexist, and they may overlap, complement, reinforce, and even conflict with each other at times. This can become more complex in countries where multiple legal systems exist in parallel. For instance, Indonesia has 6 and Lebanon has 18 different recognized sources of family law. The existence of legal pluralism affects gender equality in different ways. While in some cases it helps advance women's rights by providing more avenues for legal redress, it can create a barrier in other situations. First, it makes the legal system more complex and difficult to navigate when seeking justice. Second, legal reforms that conflict with recognized traditional beliefs are harder to enact because these traditional beliefs are more deeply woven into society. This is exacerbated where the state formally upholds the integration of religion and culture in the law.

Third, different belief systems can contain provisions that discriminate against women. In some plural legal systems, reforming the legal framework to promote gender equality requires dialogue with ethnic and religious leaders as well as women's groups to empower each of them to challenge discriminatory laws. It also requires education and resources to navigate these complex systems. Access to courts for women needs to be improved and courts encouraged to interpret customary law in a way that advances equality.

iii. INHERITED LAWS

In addition, many countries in the world inherited legal codes from colonial powers, which included provisions that discriminate against women. After independence, a number of former colonies maintained these legal systems and the gender bias within these codes. Ironically, while most European countries have phased out the gender discrimination in their codes, the original codes are still in force in some former colonies. For example, in Equatorial Guinea, a woman still needs her husband's permission to sign a contract because of the 1960 Spanish Civil Code. Seventy-five percent of economies in Francophone Africa have regulations which restrict women's employment, mirroring a 1954 ordinance from the former federation of French West Africa. Thus, in Chad, Guinea-Bissau and Niger, married women cannot open a bank account without their husbands' permission. In addition, due to a Spanish decree enacted in 1957, women in 12 countries in the Spanish speaking world are prohibited from working in mining, certain construction jobs and the electricity sector. Countries that still maintain gender-biased codes inherited from the British, French and Spanish legal systems could usefully embark on reforms similar to those the former colonial powers have introduced to remove these gender impediments.

SUGGESTED READINGS

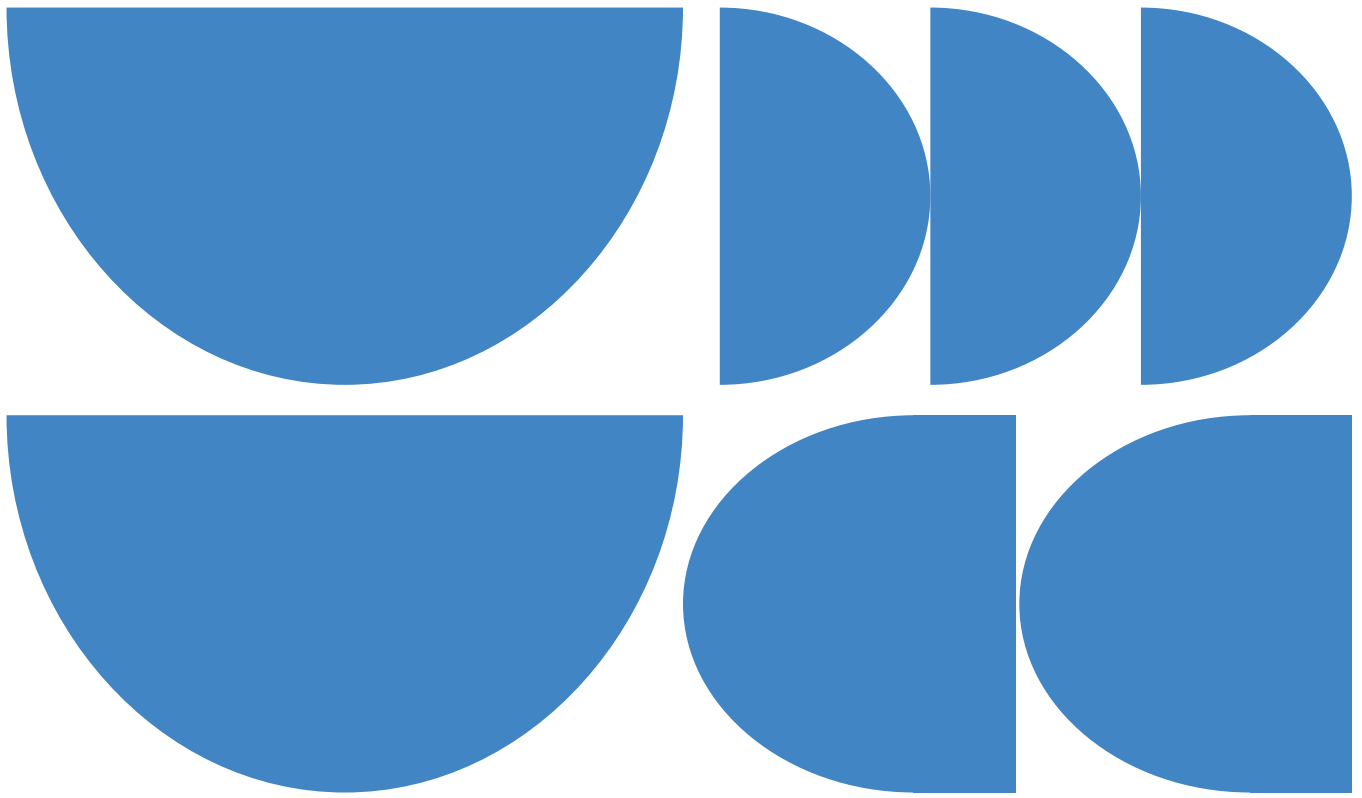
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PART II

- <https://knowledge.unwomen.org/sites/default/files/2026-03/equality-in-law-for-women-and-girls-by-2030-progress-review-and-updated-targets-en.pdf>
- https://www.unodc.org/documents/evaluation/HumanRights-GenderEquality/Strategy_for_Gender_Equality_and_the_Empowerment_of_Women_2022-2026.pdf
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PART III

- https://tunisia.unfpa.org/sites/default/files/pub-pdf/Regional_Overview_English.pdf
- https://www.ohchr.org/sites/default/files/Documents/Publications/laws_that_discriminate_against_women.pdf
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contact us
USG Delegate Affairs

Nandana Unnikrishnan
90372 36489

Pratyush Das
97179 55325

Anubha Paresh
91093 96963

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You**



@nsutmun



nsutmun